



E Roz <evanroz@gmail.com>

Re: Appeal of DAV 22-201992C1 message

Evan Rosner <evanroz@gmail.com>

Thu, May 11, 2023 at 7:27 AM

To: "Dolski, Karly" <KarlyDolski@winnipeg.ca>

Cc: CLK-Appeals <clk-appeals@winnipeg.ca>

Good morning,

The points I've made in my appeal application have serious ramifications for the original application for Variance made by Thorwin Properties and I request that my submission be put through regardless of my status as a tenant and non-property owner. "Any decision by a designated employee or a planning commission on an application for a variance may be appealed in accordance with section 189 (appeals) by:

- (a) the applicant;
- (b) the owner of real property adjacent to the real property in respect of which the application was made;
- or
- (c) any person who made submissions at any hearing conducted in respect of the application."

Please provide me with alternatives if you are unable to deem me eligible.

Thank you,
Evan Rosner

On Wed, May 10, 2023 at 12:44 PM Dolski, Karly
<KarlyDolski@winnipeg.ca> wrote:

Hello Evan,

We are bound by the legislation set out in The City of Winnipeg Charter, and therefore cannot accept your letter of appeal as you do not meet the eligibility requirements set out therein.

Thank you,



Karly Dolski

Committee Clerk

City Clerk's Department

Email: karlydolski@winnipeg.ca

Website: winnipeg.ca

Address: 1st floor, 510 Main St, Winnipeg, MB R3B 1B9

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From: Evan Rosner <evanroz@gmail.com>
Sent: Wednesday, May 10, 2023 12:16 PM
To: CLK-Appeals <clk-appeals@winnipeg.ca>
Cc: Dolski, Karly <KarlyDolski@winnipeg.ca>
Subject: Re: Appeal of DAV 22-201992C

**** EXTERNAL EMAIL - USE CAUTION ****

Thank you for your response.

There must be a way for me to appeal this decision as it directly affects my tenacy.

Please advise.

Thank you,

Evan

On Wed, May 10, 2023 at 12:09 PM CLK-Appeals <clk-appeals@winnipeg.ca> wrote:

Hello Evan,

Thank you for confirming that you are not a registered property owner at 585 Corydon Avenue.

Unfortunately, we cannot accept your appeal because you are not eligible to appeal the variance order for 585 Corydon Avenue.

Section 251(1) of *The City of Winnipeg Charter* provides as follows:

“Any decision by a designated employee or a planning commission on an application for a variance may be appealed in accordance with section 189 (appeals) by:

- (a) the applicant;
- (b) the owner of real property adjacent to the real property in respect of which the application was made;
- or
- (c) any person who made submissions at any hearing conducted in respect of the application.”

Inasmuch as you are not the registered owner of real property adjacent to the real property in respect to which the application was made, you are not eligible to appeal.

Please be advised that we have not received any appeals for the variance order for 585 Corydon Avenue by eligible appellants so far,

however, should the subject order be appealed by an eligible appellant, your communication will then be received as a submission in support of the appeal and become part of the public record.

Sincerely,



Mari Campbell

on behalf of

Karly Dolski, Committee Clerk

Appeal Committee

Committee Support Clerk

City of Winnipeg

City Clerk's Department

Telephone: 204-986-5974

Email: maricampbell@winnipeg.ca

Website: winnipeg.ca

Address: Main Floor, Susan A. Thompson Building, 510 Main Street, Winnipeg, MB R3B 1B9

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From: Evan Rosner <evanroz@gmail.com>
Sent: Wednesday, May 10, 2023 11:41 AM
To: CLK-Appeals <clk-appeals@winnipeg.ca>
Subject: Re: Appeal of DAV 22-201992C

**** EXTERNAL EMAIL - USE CAUTION ****

Yes, I confirm that I am a resident at 10 - 585 Corydon Ave.

On Wed, May 10, 2023 at 11:31 AM CLK-Appeals <clk-appeals@winnipeg.ca> wrote:

Good morning Evan,

Thank you for your email. Could you please confirm that you are renting your unit at 10-585 Corydon Avenue and that you are not a registered property owner at 585 Corydon Avenue?

Regards,

Mari Campbell

Committee Support Clerk

City of Winnipeg

T: 204-986-5974

E: maricampbell@winnipeg.ca

CITY CLERK'S DEPARTMENT

From: Evan Rosner <evanroz@gmail.com>
Sent: Wednesday, May 10, 2023 9:32 AM
To: CLK-Appeals <clk-appeals@winnipeg.ca>
Subject: Re: Appeal of DAV 22-201992C

**** EXTERNAL EMAIL - USE CAUTION ****

May 10, 2023

City Clerk, City of Winnipeg c/o Appeals Committee
Susan A. Thompson Bldg.
510 Main Street
Winnipeg, MB, R3B 1B9
Fax: 204-947-3452
Email: clk-appeals@winnipeg.ca

RE: City of Winnipeg Variance Ord: DAV 201992/2022C & 10-585
Corydon Avenue

To whom it may concern,

I am writing to appeal the variance order listed above. While many city policies have been adopted to encourage development of residential zoning developments, it appears that very little was done to ensure that property regulations and research was properly integrated into the planning for this project. We respectfully appeal against the approval of the proposed variance application, as it disregards proper procedure and would significantly impact the tenants' ability to enjoy the services they are entitled to.

Firstly, it has come to our attention that the Applicant intends to remove the community laundry and storage facilities, which are essential services provided to the tenants. According to a statement provided by Celena Funk, Property Manager of 585 Corydon Ave, on May 5, 2023, the Applicant acknowledged that the withdrawal of such services requires an application to the Residential Tenancies Branch. It is concerning that the Applicant has failed to follow this required procedure, raising doubts about the legitimacy of their variance application. It is impossible that an application for withdrawal of services has occurred and been processed by May 11, 2023. As such, the variance cannot be completed until after review by the Residential Tenancies Branch.

Furthermore, Section 169 of the City of Winnipeg Zoning By-law states that a variance application can only be approved if it does not create a substantial adverse effect on the amenities, use, safety, and convenience of the surrounding properties and area. It is important to note that the provision of common areas, services, facilities, and privileges, including laundry and storage, is an integral part of the rental agreement between the tenants and the landlord. Removing these services would directly impact the tenants' ability to fully enjoy the amenities and conveniences they

pay for and are entitled to under their tenancy agreement.

Additionally, the cost of rent is not solely based on the rental unit itself but also includes the use of common areas, services, and facilities. If the laundry and storage facilities are removed, it is only fair that the cost of rent be adjusted accordingly since these services would no longer be provided. This is not a minor matter, as the removal of these services would have a significant effect on both the property and the tenants. No alternative has been provided for this tenant.

Considering these factors, we strongly believe that the proposed variance is not desirable and should be rejected. Removing essential services without following the proper procedures not only undermines the rights and expectations of the tenants, but also raises concerns about the Applicant's compliance with relevant regulations and obligations.

In light of the above, we kindly request that the Committee carefully considers the concerns raised in this letter during your evaluation of Thorwin Properties' variance application. We urge you to prioritize the protection of tenants' rights, the preservation of essential services, and the adherence to proper procedures in land development applications.

Thank you for your attention to this matter. We trust that the Committee will act in the best interest of the tenants and the community as a whole. Should you require any further information or clarification, please do not hesitate to contact me at your earliest convenience.

Sincerely,
Evan Rosner
10-585 Corydon Ave
Winnipeg, MB
R3L0P3